Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C24
HON. Scott A. Steiner

Date: November 29, 2023

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#	Case Name	Tentative
101.	2021-1185609 Bedi v. Anand	Plaintiff Namrata Bedi's motion to compel defendant Praduman Singh to provide responses to form interrogatories set one, is granted. Defendant is to provide verified responses without objection no later than a date to be determined at the hearing. Plaintiff is awarded sanctions of $600 against Defendant, to be paid by January 2, 2024. Plaintiff's motion to compel Defendant to appear for deposition is granted. Defendant is to appear for deposition on a mutually convenient date no later than a date to be determined at the hearing. Plaintiff is awarded sanctions of $800 against Defendant, to be made no later than January 2, 2024. Plaintiff's motion to deem admitted requests for admission, set one, served on Defendant, is denied. Motion to Compel Responses to Form Interrogatories If a party to whom interrogatories are directed fails to serve a timely response: (1) the party who has failed to provide a

		timely response waives any right to assert objections; and (2) the party propounding the interrogatories may move for an order compelling response to the interrogatories. Code Civ. Proc. § 2030.290(a) and (b). Plaintiff has made such a motion and has served it by mail on Defendant's address of record. [ROA #108 at POS.] The issue is the service of the form interrogatories, which were served on Defendant by certified mail at 1335 Cole Lane, Upland CA 91786 – that is, not the correct address according to the address of record. But: (1) it was served by certified mail; (2) the notice of deposition was served at this same address and Defendant appears to have received it since he responded by email; and (3) the RFAs were also served to that same address and, according to Plaintiff's counsel, Defendant served responses. [Garcia Decl. (ROA #108), Ex. A at POS; Garcia Decl. (ROA #109), ¶ 4 and Ex. A at POS; Garcia Decl. (ROA #107), ¶¶ 3, 4 and Ex. B.] The court finds that the form interrogatories were properly served on Defendant. So, too, was the motion to compel. Defendant did not respond to the interrogatories and has not opposed the motion. Plaintiff is therefore entitled to an order compelling Defendant to provide verified responses without objection. Code Civ. Proc. § 2030.290. Because Defendant did not timely respond, objections to the interrogatories are waived. Id. Motion to Compel Deposition Code Civ. Proc. § 2025.450(a) provides that when a party deponent is served with a deposition notice and, without having served a valid objection under Code Civ. Proc. § 2025.410, fails to appear for deposition the party giving notice may move for an order compelling the deponent's attendance and testimony at deposition. The motion must be accompanied by a declaration under Code Civ. Proc. § 2016.040 stating that the moving party contacted the deponent to inquire about the nonappearance. Code Civ. Proc. § 2025.450(b)(2). Here, Plaintiff has shown that she served a deposition notice on Defendant. He responded, asking for the date to be changed. When a second notice was served with the date change requested, Defendant failed to appear or respond despite follow up by Plaintiff's counsel. [Garcia Decl. (ROA

		##42, 109), ¶¶ 2-6.] Plaintiff's pending motion to compel deposition has been properly served on Defendant. Plaintiff has met the requirements for an order compelling Defendant's attendance and testimony at deposition. Defendant's motion to compel is granted. Motion to Deem RFAs Admitted A propounding party may ask the court for an order that deems the matters contained in the requests for admission admitted if the receiving party fails to respond to the requests for admission. CCP § 2033.280(b). The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with CCP § 2033.220 before the hearing on the motion. CCP § 2033.280(c). If the party to whom the requests for admission are directed fails to respond, that party waives all objections, including claims of privilege and work product protection. CCP § 2033.280(a). Substantive responses to RFAs must be verified; and unverified responses are the equivalent of no response and subject to a motion to deem admitted. Allen-Pacific Ltd. v. Superior Court (1997) 57 Cal. App. 4th 1546, 1551 (disapproved on other ground in Wilcox v. Birtwhistle (1999) 21 Cal. 4th 973, 983 n. 12). But objections do not need to be verified. Food 4 Less Supermarkets, Inc. v. Superior Court (1995) 40 Cal. App. 4th 651, 657. If objections or hybrid responses with both objections and substantive answer are timely served, without verification, the objections are not waived. Id. Plaintiff does not indicate when Defendant served his RFA responses. It is not clear if he contends the responses were untimely because they were not served on time or that they were untimely because they were not verified. [See Motion MPA (ROA #33) at 4-5. It looks to me it is the latter. In any event, if Plaintiff's contention is that the objections asserted by Defendant were waived due to untimely response and Plaintiff is seeking an order for further responses, then he brought the wrong motion.

		Where responses were timely served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. Code Civ. Proc. § 2033.290; Wimberly v. Derby Cycle Corp. (1997) 56 Cal. App. 4th 618, 636. This motion must be preceded by meet and confer efforts and be made within 45 days. Code Civ. Proc. § 2033.290(b), (c). The motion also must be accompanied by a separate statement. CRC 3.1345(a)(1). Here, the current record shows that Defendant served only unverified responses to RFAs, but responses that included objections. The RFAs cannot be deemed admitted in the face of the objections. Accordingly, Defendant's motion to deem RFAs admitted is denied.
104.	2022-1268760 Jimenez v. FCA US, LLC.	Defendant Central Valley Automotive's ("Defendant") unopposed motion to transfer venue to Stanislaus County Superior Court is GRANTED. Defendant seeks an order transferring this action to Stanislaus County pursuant to CCP 397 (c) because that is where Repair Shop resides, where the automotive sales contract was executed, where all repairs were performed, and all witnesses (including Plaintiffs) reside. Defendant contend transferring the action would promote the ends of justice and is for the convenience of witnesses. The Court may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change. (Code Civ. Proc. § 397, subd. (c).) The moving party has the burden of proving "'that both the convenience of witnesses and the ends of justice will be promoted thereby … It is primarily a question for the trial judge whether that burden has been successfully sustained.' [Citation.]" (Corfee v. Southern California Edison Co. (1962) 202 Cal.App.2d 473, 477, 479; Minatta v. Crook (1959) 166 Cal.App.2d 750, 755.) The convenience of witnesses who are employees of a party to the litigation are generally not considered on a motion for change of venue. (International Inc. Co. v. Merola (1959) 175 Cal.App.2d 439, 446; accord, Lieberman v. Superior Court (1987) 194 Cal.App.3d 396, 401.) A "limited exception has arisen allowing a court to consider the convenience of witnesses who are employees of a party. That exception obtains when the employees are called as witnesses by the

		adverse party rather than on behalf of their employer." (Lieberman, supra, 194 Cal.App.3d at p. 401.) This is a lemon law case. Here, the Subject Vehicle's purchase and service are the central issues of this case. At least nine (9) of the identified witnesses reside some 350 miles from Orange County, in Stanislaus County. They are all knowledgeable about and are anticipated to testify regarding the sale, service presentations, service, repair and repair history of the Subject Vehicle as it relates to Plaintiffs' claims in this action. Importantly, Defendant anticipates these witnesses being called by Plaintiffs in this case, not by Defendants. The witnesses are almost exclusively service technicians, who are paid when they work. Any witness fees would not come close to compensating these mechanics for missed work. To the extent that trial is held in Stanislaus County, the witnesses could conceivably miss mere hours of work, versus days if the trial is held in Orange County. The material case witnesses would have to either drive 12 hours round trip, incur the expense of flying, incur the expense of a hotel in Orange County. Moreover, each of these automotive dealer employees would be missing one or more full days of work and associated income if forced to attend trial in Orange County. As there is no opposition to the instant motion, these facts and contentions are undisputed. Thus, change of venue appears appropriate for the convenience of witnesses. While Defendant FCA's principal place of business is in Orange County, there is no other connection to this county and FCA does not oppose the instant motion. Thus, change of venue to Stanislaus County appears appropriate in the promotion of justice as there is very little relationship to Orange County. Based upon the foregoing, Defendant's motion is GRANTED. All future dates in this action are hereby VACATED. Moving Party to give notice.
105.	2023-1318579 Selter v. California Eastern Star Foundation	The Court grants specially appearing Defendant Eastern Star Home dba Senior Living Community's (erroneously sued as California Eastern Star Foundation dba Yorba Linda Senior Living) unopposed Motion to quash service of the Summons and Complaint.

		Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. [CCP § 418.10(a)(1); see Kremerman v. White (2021) 71 Cal.App.5th 358, 371—"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void" (internal quotes and citation omitted).] "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove … the facts requisite to an effective service." [Summers v. McClanahan (2006) 140 CA4th 403, 413; see Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163.] Proving the existence of jurisdiction is always plaintiff's burden. Therefore, even though defendant is the moving party on a motion to dismiss, the burden is on plaintiff to show valid service within the statutory period. [Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-1440.] Effecting service on a corporation requires delivery of summons and complaint to some person on behalf of the corporation. [CCP § 416.10; Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1437] Service may be made upon "the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, [or] a general manager." [CCP § 416.10(b)] Service may also be made upon "a person authorized by the corporation to receive service of process." [CCP § 416.10(b).] Here, the Proof of Service on Moving Defendant was never filed, but it is included as Exhibit A to the Motion. Plaintiff's Proof of Service asserts that the process server left the Summons and Complaint with a "Cindy Alderson". (Ortiz Decl., ¶ 2, Exhibit A.) Ms. Anderson is not the agent for service of process or any identified on the Defendant's Statement of Information filed with the California Secretary of State. (Decl. Ortiz ¶ 3, Exhibit B.) It is Plaintiff's burden to show that Ms. Anderson has authority to accept service of the Summons and Complaint on

		behalf of Defendant. Plaintiff chose not to oppose this Motion and thus has not met that burden. Thus, the Motion is granted. Specially appearing Defendant is ordered to serve notice of this Order.
107.	2023-1310721 Fulton v. Swinney	Defendants Colleen Swinney ("COLLEEN") and Pickford Real Estate, Inc. dba Berkshire Hathaway HomeServices California Properties ("BERKSHIRE") (collectively "Defendants") demur to the third cause of action for fraudulent concealment alleged in Plaintiffs Bryan and Elle Fulton's ("Plaintiffs") First Amended Complaint ("FAC"). Defendants contend the fraudulent concealment claim is insufficiently pled because Plaintiffs fail to allege specific facts to support their conclusions that they, the listing agent and broker, were aware of "latent water intrusion defects which were allegedly concealed and not discovered until plaintiffs began upgrading the Property and retained a mold expert"; that the allegations that COLLEEN is "the sellers' daughter-in-law" and "had spent significant time at the [Property] over the years" and used the barbeque and backyard are insufficient; that the Complaint is devoid of any specific facts that Defendants knew about the latent defects merely because they worked with Sellers to prepare the Property for listing and sale; and the FAC fails to allege which specific defendants misrepresented and/or concealed which specific latent defects (See FAC, ¶¶ 24, 28-30, and 52.) "The elements of a claim for fraudulent concealment require the plaintiff to show that: '(1) the defendant ... concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant ... intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.'" (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal. App. 4th 1105, 1130.) "The duty to disclose may be established where there is a confidential relationship between the parties, defendant has

		made a representation which was likely to mislead due to the nondisclosure, there is active concealment of undisclosed matters, or one party has sole knowledge of or access to material facts and knows such facts are not known to or discoverable by the other party." (Id.) Here, the FAC alleges that Plaintiffs are "informed and believe that Defendant Colleen, as Sellers' daughter-in-law, had spent significant time at the Real Property over the years, knew about the defects therein, and had worked with Sellers to prepare the Real Property for listing and sale and had been doing so for many months prior to meeting Plaintiffs"; that "Plaintiffs' uncovered significant and long-standing defects that Defendants failed to disclose and/or purposefully concealed from Plaintiffs"; that "Defendants were required to disclose any and all known material facts that would affect the desirability and marketability of the Real Property, yet Defendants failed to disclose and/or purposefully concealed these significant fact"; that "Sellers had a new roof installed on the Real Property in or about February 2021"; that "Plaintiffs are informed and believe, and on that basis allege, that the new roof was installed, in large part, because of leaks, including leaks in the northwest corner of the Real Property, that were causing significant and hazardous defects from water intrusion, including the presence of toxic mold; that "Plaintiffs are informed and believe, and on that basis allege, that the Broker Defendants were aware of these defects because, among other things, they were representing Sellers long before the new roof was installed and Colleen is Sellers' daughter-in-law who spent significant time at the Real Property"; and that Defendants failed to disclose and/or concealed other significant defects in the condition of the Property. (See FAC, ¶¶ 52-55.) The FAC also alleges that "in or about July 2019, the Broker Defendants represented Sellers in Sellers' efforts to sell the Real Property"; that Plaintiffs first saw the Property in or about April 2020 at an open house hosted by Broker Defendants and the Property had an older roof and that a $36,000 credit would be paid at closing for the installation of a new roof; that Broker Defendants falsely represented that they were unaware of any defects including past defects that had been repaired as to the roof, attic, windows, walls, ceilings and floors; that they denied being aware of any water intrusion, leaks or issues with mold; and that Plaintiffs believe there were numerous leaks in the plumbing of the Real Property which Defendants were aware of and intentionally or

negligently failed to disclose them or actively concealed them from Plaintiffs. (See FAC, ¶¶ 15, 16, 21, and 23.)

These allegations sufficiently allege a cause of action for fraudulent concealment as the FAC alleges that Defendants were aware of the water intrusion defects and failed to disclose them. There is no legal requirement that Plaintiffs allege specific facts as to how Defendants knew about these defects. A complaint need only "allege the ultimate facts necessary to the statement of an actionable claim." (Careau & Co. v. Sec. Pac. Bus. Credit, Inc. (1990) 222 Cal.App.3d 1371, 1390.) Accordingly, the demurrer to the fraudulent concealment cause of action is OVERRULED.

Motion to Strike.

Defendant Colleen Swinney ("Defendant") seeks an order striking the punitive damages allegations -- paragraph 62, lines 24-26, and Prayer, p. 15, Paragraph 3 – from the First Amended Complaint ("FAC"). Defendant contends the FAC fails to allege sufficient facts to warrant punitive damages as the allegations do not rise to the "malice" or "oppression".

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citations.]" (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants' conduct may adequately plead the evil motive requisite to recovery of punitive damages." (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 510.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 437(a).)

To support exemplary damages, the complaint must allege facts of defendant's oppression, fraud, or malice, as required by Civil Code section 3294. (Civil Code § 3294(a); College Hospital Inc. v. Superior Court (1994) 8 Cal. 4th 704, 721; Turman v. Turning Point of Central Calif., Inc. (2010) 191 Cal.App.4th 53, 63.)

		Here, the FAC sufficiently alleges a cause of action for fraudulent concealment against Defendant. As such, the FAC alleges sufficient facts to warrant punitive damages against Defendant. The Motion is DENIED.
108.	2022-1272612 Guerrero v. A Better Life Recovery, LLC.	Plaintiff's Objections 1 – 4 to the Declaration of William Mara are OVERRULED. Defendants' Objections 1 – 14 to the Declaration of Christian J. Petronelli are OVERRULED. Defendants' Objections 1 – 9 to the Declaration of Rachel Guerrero are OVERRULED. Defendants, A Better Life Recovery, LLC and A Mission For Michael, Inc., Motion to Compel Arbitration is DENIED. Defendants have not met their burden of showing that a valid written agreement to arbitrate exists. The Declaration of William Mara does not lay a proper or sufficient business records foundation under Evidence Code §1271. Because he has not laid a sufficient business records foundation, it has not been shown that any electronic signature has been shown to be the act of plaintiff as required by Civil Code §1633.9(a). Moving party shall give notice.
109.	2023-1311720 Home Expo Group LLC v. Nguyen	Off calendar pursuant to Notice filed.
110.	2022-1295621 Kowalski v. BMW of North America LLC	Defendant BMW of North America, LLC.'s motion to compel arbitration of Plaintiffs Tuvet Tran's and Lucille Kowalski's claims is denied. Plaintiffs' objections are overruled. The Retail Installment Sales Contract ("RISC") that Plaintiffs signed when they purchased the vehicle at issue in this Song-Beverly case contained an arbitration provision that includes the following language (emphasis added): Either you or I may choose to have any dispute between us decided by arbitration and not in a court or by jury trial. If a dispute is arbitrated, I will give up my right to participate as a class representative or class member on any Claim I may have against you including any right to class arbitration or any consolidation of individual arbitrations. Discovery and rights to appeal in arbitration are generally more limited than in a

		lawsuit, and other rights you and I would have in court may not be available in arbitration. “Claim” broadly means any claim, dispute or controversy, whether in contract, tort, statute or otherwise, whether preexisting, present or future, between me and you or your employees, officers, directors, affiliates, successors or assigns or between me and any third parties if I assert a Claim against such third parties in connection with a Claim I assert against you, which arises of or relates to my credit application, purchase or condition of this Vehicle, this Contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this Contract). Any Claim shall, at your or my election, be resolved by neutral, binding arbitration and not by a court action…. This Contract involves interstate commerce and this Arbitration Clause and any arbitration hereunder shall be governed by the FAA and not by any state law concerning arbitration. (Grener Decl., Ex. A.) Also relevant is that the RISC is this introductory language (emphasis added): This Motor Vehicle Retail Installment Contract (“Contract”) is entered into between the buyer(s) (“Buyer”) and the seller (“Seller”) named above. Unless otherwise specified or required by context, “I”, “me” and “my” refer to the Buyer and “you” and “your” refer to the Seller or Seller’s assignee. Notably, the parties to the RISC are Plaintiffs and Sterling BMW, not the moving defendant. The dispute centers around whether Defendant BMW has standing to enforce this arbitration agreement. Here, Defendant argues that it has standing to enforce the agreement for two reasons. First, Defendant contends it is a third-party beneficiary as an affiliate of the assignee of the purchase contract. Second, Defendant argues it has standing under the doctrine of equitable estoppel. Third-party beneficiary

		Defendant asserts it is entitled to enforce the Agreement as a third-party beneficiary. "A third-party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit." (Jensen v. U-Haul Co. of California (2017) 18 Cal.App.5th 295, 301.) Recently, in Ford Motor Warranty Cases (Ochoa) (2023) 89 Cal.App.5th 1324, the Court of Appeal noted that "[t]o show the contracting parties intended to benefit it, a third party must show that, under the express terms of the contract at issue and any other relevant circumstances under which the contract was made, (1) 'the third party would in fact benefit from the contract'; (2) 'a motivating purpose of the contracting parties was to provide a benefit to the third party'; and (3) permitting the third party to enforce the contract 'is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.'" (Id. at 1337 [citing Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 827, 830].) Analyzing the arbitration clause at issue, which is like the one here, the court found that the sale contracts reflected no intention to directly benefit the vehicle manufacturer. (Id. at 1338.) Further, there was no indication that a benefit to the manufacturer was the signatories' "motivating purpose" in contracting for the sale of the vehicle. (Id. at 1338-1339.) Rather, the "manifest intent of the parties was to buy, sell and finance a car, and to allow either the purchaser or the dealer to compel arbitration of the specified categories of disputes between them, or between the purchaser and any of the dealer's 'employees, agents, successors or assigns.'" (Id. at 1339.) The court noted that had the parties to the contract intended to benefit the manufacturer, they could have simply named it as a person entitled to compel arbitration. (Id.) Instead, like in this matter, the arbitration provides only that "'EITHER YOU OR WE'—the purchaser or the dealer—'MAY CHOOSE TO HAVE ANY DISPUTE BETWEEN US DECIDED BY ARBITRATION,' and reiterated that arbitrable disputes 'shall, at your or our'—the purchaser's or the dealer's—'election, be resolved by neutral, binding arbitration ....'" (Id. [emphasis in original].) Also, like in this matter, the defendant in Ochoa attempted to argue that the contract's reference to "third parties who do not sign this contract" gave it a right to arbitrate. (Id.) But "this reference concerns what may be arbitrated, not who may arbitrate. Who may enforce an arbitration agreement is a

		separate matter from the types of disputes the agreement covers." (Id. [emphasis in original].) Finally, the court held that allowing the manufacturer to enforce the arbitration clause would be inconsistent with the "reasonable expectations of the contracting parties," given that they expressly vested the right of enforcement in the purchaser and dealer only. (Id. at 1340 [citing (Goonewardene, supra, 6 Cal.5th at p. 830].) Like in Ochoa, the Court finds that here, Defendant BMW does not have standing as a third-party beneficiary to enforce the arbitration contract. Equitable estoppel Defendant alternatively argues that arbitration should be compelled pursuant to the doctrine of equitable estoppel, which provides that "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are intimately founded in and intertwined' with the underlying contract obligations." (Felisilda v. FCA US LLC (2020) 53 Cal.App.5th 486, 495). "By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement." (Id. at 496). "Where the equitable estoppel doctrine applies, the nonsignatory has a right to enforce the arbitration agreement." (Id.). The Court recognizes that there is a split of authority on the issue. The Third District in Felisilda v. FCA US LLC (2020) 53 Cal.App.5th 486 found that an arbitration agreement contained in a sales contract between the dealer and purchaser could be enforceable against the manufacturer under the doctrine of equitable estoppel. However, more recently, the courts in Ford Motor Warranty Cases (Ochoa), supra, 89 Cal.App.5th 1324, Montemayor v. Ford Motor Co. (2023) 92 Cal.App.5th 958 and Kielar v. Superior Court (2023) 94 Cal.App.5th 614 disagreed with the reasoning in Felisilda and concluded that the manufacturer was not entitled to enforce the arbitration agreement.

		When there is a split in authority, the trial court may follow the decision it finds to be the most persuasive. (Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 456 [when "appellate decisions are in conflict" a "court exercising inferior jurisdiction can and must make a choice between the conflicting decisions"].) Disagreeing with Felisilda, the Ochoa court held that "manufacturer vehicle warranties that accompany the sale of motor vehicles without regard to the terms of the sale contract between the purchaser and the dealer are independent of the sale contract." (Id.) The court in Ochoa further explained: "California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract." (Id. at 1335.) "[O]ur Supreme Court [has] distinguished between, on the one hand, warranty obligations flowing from the seller to the buyer by contract, and, on the other hand, manufacturer warranties 'that arise[] independently of a contract of sale between the parties.'" (Id. at 1336.) Thus, the Ochoa court held that "Plaintiff's claims in no way rely on the sale contracts" and, consequently, "[e]quitable estoppel does not apply." (Id. at 1336; see also gen. Kielar v. Superior Court (2023) 94 Cal.App.5th 614 and Montemayor v. Ford Motor Co. (2023) 92 Cal.App.5th 958 [both agreeing with Ochoa and disagreeing with Felisilda].) After reviewing the cases, the court agrees with the law stated in Ochoa, Kielar, and Montemayor. Plaintiffs' claims here based on the manufacturer's warranties, are not so intertwined with the contract obligations in the RISC, to justify invoking the equitable estoppel doctrine to compel a nonsignatory to arbitrate. Accordingly, the motion to compel arbitration is denied. Plaintiffs shall give notice.
111.	2022-1297372 Lehman v. U.D.R.	The Demurrer by Defendant DCO Pacific City LLC, erroneously sued as UDR – DCO Pacific City LLC, is sustained with leave to amend. The Complaint filed by Plaintiff Kent Lehman fails to state facts sufficient to constitute a claim for negligence and is uncertain. (Co

		Plaintiff must file and serve an amended pleading within 30 days of the notice of ruling. Defendant shall give notice of the ruling.
112.	2022-1269769 Mora v. City of Placentia	The Demurrer to the First Cause of Action for Premises Liability brought by Defendant the City of Placentia is SUSTAINED, with 15-days leave to amend. "Except as otherwise provided by statute…[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, §815, subd. (a) [emphasis added].) "In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714." (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) "Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) Here, the demurrer to the first cause of action for premises liability is sustained, as the claim fails to identify a statutory basis for public entity liability. At most, the Complaint references Placentia's Municipal Code §2.08.100; however, the same is not a statutory duty, as contemplated by Government Code section 815. Defendant interprets the reference to Municipal Code §2.08.100 as an attempt to invoke Government Code section 815.6, which states: "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Gov. Code, §815.6.) To the extent Plaintiff intended to rely on the above provision, this reliance fails as: (1) Plaintiff did not plead reliance on Government Code section 815.6; and (2) Placentia Municipal Code §2.08.100 does not establish a mandatory duty.

		"First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken." (Ellerbee v. County of Los Angeles (2010) 187 Cal.App.4th 1206, 1215.) "It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion." (Ibid.) Additionally, "[c]ourts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines." (Guzman v. County of Monterey (2009) 46 Cal.4th 887, 898.) "An enactment does not create a mandatory duty if it merely recites legislative goals and policies that must be implemented through a public agency's exercise of discretion." (Lockhart v. County of Los Angeles (2007) 155 Cal.App.4th 289, 308.) Here, the relevant municipal code states: "The functions of the recreation and parks department shall include planning and implementing recreation programs and activities, coordination of cultural activities, development and maintenance of parks and recreational facilities, and city beautification." (Placentia Municipal Code §2.08.100.) The Court takes judicial notice of this municipal code, on its own motion, pursuant to Evidence Code section 452, subdivisions (b) and (h). The above language identifies the anticipated function of the recreation and parks department and reflects a policy of maintaining parks. As the above language includes no implementing guidelines – specifically no instructions as to how parks should be maintained - it is a statement of policy, only, and not a mandatory duty. (Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1090 ["A 'general statement of public policy' cannot serve as the basis for a mandatory duty under section 815.6."]) Based on all the above the demurrer is sustained; however, leave to amend is granted, to permit Plaintiff to allege liability pursuant to Government Code section 835. Defendant to give notice.
113.	2021-1197977 Pham v. Pham	Proposed Intervenor Phuong Truong's motion to intervene as a defendant-in-intervention as to plaintiff Kim Chi Pham's cause of action for quiet title in her second amended complaint

		("SAC") is continued to a date to be agreed upon at the hearing. This action, including Proposed Intervenor's motion, is stayed due to defendant Patricia Chau Pham's bankruptcy filing. 11 USC § 362; Ingersoll-Rand Fin. Corp. v. Miller Mining Co. (9th Cir. 1987) 817 F.2d 1424, 1427; In re Gaime (11th Cir. 2021) 17 F.4th 1349, 1353–1354.
114.	2022-1262463 Romero v. FCA US, LLC	Off calendar